

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No:
Date Filed:

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SAIDOU MAKANERA,

Plaintiff,

Plaintiff designates
BRONX COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

DETECTIVE ARTHUR YUKHANANOV
(Shield # 15272) (Tax #: 956344) and
DETECTIVES/POLICE OFFICERS JOHN DOE 1-4¹,

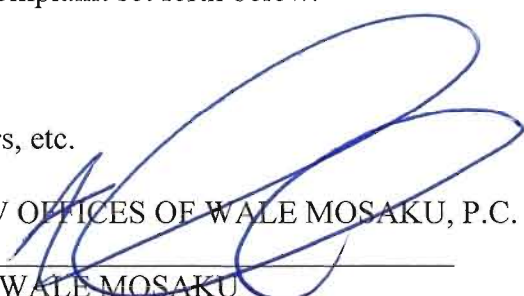
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
November 5, 2020

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

Defendants' Address(es):
New York City Police Department
42nd Police Precinct
830 Washington Avenue
Bronx, NY 10451

¹ The plaintiff is presently unaware of the names and tax/badge numbers of these defendants.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X Index No.
SAIDOU MAKANERA,

Plaintiff,

-against-

COMPLAINT

DETECTIVE ARTHUR YUKHANANOV
(Shield # 15272) (Tax #: 956344) and
DETECTIVES/POLICE OFFICERS JOHN DOE 1-4¹,

Defendants.

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SAIDOU MAKANERA (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES
OF WALE MOSAKU, P.C., complaining of the defendants DETECTIVE ARTHUR
YUKHANANOV (Shield # 15272) (Tax #: 956344) and DETECTIVES/POLICE
OFFICERS JOHN DOE 1-4 (hereinafter collectively referred to as "defendant officers"),
upon information and well founded belief, alleges as follows:NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is an African-American male of full age.
3. At all relevant times the defendant officers were, and upon information and well founded belief, still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").

¹ The plaintiff is presently unaware of the names and tax/badge numbers of these defendants.

4. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

FACTUAL ALLEGATIONS

5. On or about May 1, 2020 at approximately 07:00 p.m., outside the front door of his residence described as 2980 Briggs Avenue, #5B, Bronx, N.Y. 10458 (subject location), the plaintiff was falsely arrested and/or caused to be arrested without probable cause by the defendant officers.
6. Prior to the time of the plaintiff's imprisonment, defendant officers John Doe 1-3, uniformed and armed at the time, had gone to the subject location, and asked to speak with the plaintiff.
7. When the plaintiff went to the door, defendant officers John Doe 1-3 asked the plaintiff if his name was Saidou Makanera, and if he drove for Uber. The plaintiff responded in the affirmative.
8. Defendant officers John Doe 1-3 then informed the plaintiff that they were there to investigate an incident, and wanted to question him.
9. The plaintiff offered to answer their questions but was instructed by defendant officers John Doe 1-3 that he had no choice but to go to the precinct with them.
10. The plaintiff thus got dressed and went to the precinct with defendant officers John Doe 1-3.
11. Defendant officers John Doe 1-3 escorted the plaintiff from his premises in full view of his neighbors, causing the plaintiff much embarrassment and shame.
12. Defendant police officers John Doe 1-3 then drove the plaintiff to the 42nd precinct in their unmarked vehicle.
13. Upon arrival at the 42nd precinct, the plaintiff was introduced to defendant officer Yukhananov who he was informed was assigned to

his matter. The plaintiff was then taken to a cell and told to “*get in there*”.

14. After spending approximately 20 minutes in said cell, an officer came to said cell, instructed the plaintiff to exit from the cell, and instructed to remove his shoelaces off his shoes. The plaintiff was then processed, or otherwise fingerprinted and photographed, following which he was placed back in the cell.
15. The plaintiff was in the cell for approximately 35 minutes, when defendant officer Yukhananov came to get him, placed him in handcuffs, and took him up to a room located at the second floor of the precinct, where defendant officer Yukhananov proceeded to question the plaintiff about an incident that had purportedly occurred at approximately 07:00 a.m. on March 29, 2020 involving a passenger.
16. In sum and substance, defendant officer Yukhananov informed the plaintiff that said passenger complained that the plaintiff had picked up said passenger, and that after picking up said passenger, the plaintiff, en route, had shut off his Uber application, and demanded that the passenger pay him in cash.
17. The plaintiff informed defendant officer Yukhananov that he did not have any specific memory of such an incident, denied it, and informed the detective that in any event, anyone familiar with how Uber operates would know that that was inconceivable, as all rides are tracked by the Uber app, and that they were cashless transactions.
18. Defendant officer Yukhananov then informed the plaintiff that there was a second version to the story, specifically, that the passenger had complained that the plaintiff upon arrival at his destination, had demanded more money in cash, purportedly on the basis that Uber was not paying him (the plaintiff) enough.
19. At this juncture the plaintiff once again denied said allegation, and informed defendant officer Yukhananov (who had been joined by

defendant officer John Doe 4 at that point) that said allegation was frivolous, as that was not how Uber worked, and anyone who was familiar with how Uber operates would know that.

20. Indeed, at no point did the defendant detectives inform the plaintiff that the passenger had made any allegation that the plaintiff had by means of threats of force or force, compelled the passenger to give him money.
21. Defendant officers Yukhananov and John Doe 4 then agreed that the story did not make sense to them either but that they had to take him to central booking because "*that's how it works*".
22. The plaintiff was thus transported to Bronx Central Booking at approximately 10:00 p.m. on May 1, 2020 where he was processed again.
23. The plaintiff remained at Bronx Central Booking until approximately 05:00 p.m. on May 2, 2020 at which point he was released from custody without being arraigned before a Judge on criminal charges. The plaintiff's arrest number was "B20612786".
24. There was absolutely no probable cause for the defendant officers to have arrested the plaintiff. He had done nothing wrong and committed no crime or offense.
25. Prior to this incident, the plaintiff, a fifty four year old male, had never been arrested before in his life.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

26. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 25 of this complaint as though fully set forth herein.
27. That the defendant officers searched, or caused the plaintiff and/or his property to be searched without any individualized reasonable suspicion that he was concealing weapons or contraband.

28. As a result of the foregoing, the plaintiff and/or his property was/were subjected to an illegal and improper search.
29. As a result of the foregoing, the plaintiff was subjected to an illegal and improper strip search.
30. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
31. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK STATE LAW

32. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 31 of this complaint as though fully set forth herein.
33. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
34. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
35. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

36. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 35 of this complaint as though fully set forth herein.
37. Each defendant officer had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
38. Each defendant officer failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
39. As a consequence of each defendant officer's actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
40. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant.

WHEREFORE, plaintiff prays for judgment against each defendant officer, as follows: for compensatory damages in an amount to be proven at trial; for exemplary and punitive damages in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
November 5, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index #:

SAIDOU MAKANERA,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

DETECTIVE ARTHUR YUKHANANOV
(Shield # 15272) (Tax #: 956344) and
DETECTIVES/POLICE OFFICERS JOHN DOE 1-4¹,
Defendants.

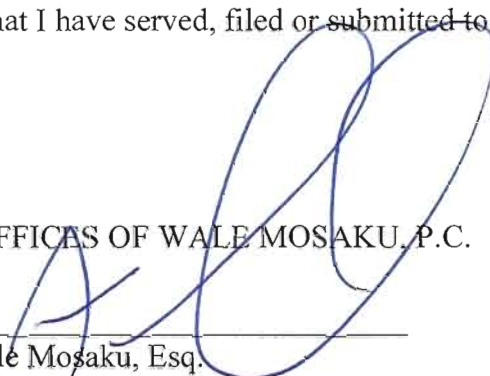
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
November 5, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

BY:  Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

¹ The plaintiff is presently unaware of the names and tax/badge numbers of these defendants.

-against-

DETECTIVE ARTHUR YUKHANANOV
(Shield # 15272) (Tax #: 956344) and
DETECTIVES/POLICE OFFICERS JOHN DOE 1-4¹,
Defendant(s) .

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To: Service of a copy of the within
is hereby admitted.

Dated:..... 20__

Attorney(s) for Defendant(s)